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1(24)

The Education Committee of the City of Stockholm

Decision following supervision under the
Data Protection Regulation –
The Education Committee of the City of Stockholm
Contents

1. Decision of the Swedish Authority for Privacy Protection	3
2. Account of the supervisory matter	3
2.1 Background	3
2.2 What has emerged in the matter	4
2.3 The scope of IMY's examination in the matter	4
3. Justification of the decision	5
3.1 Applicable legislation for the Education Committee's video surveillance	5
3.1.1 Data Protection Regulation	5
3.1.2 Camera Surveillance Act	5
3.2 Data controller responsibility	5
3.3 Does the Education Committee need permission for the video surveillance?	5
3.4 Has the Education Committee had a legal basis for its video surveillance under Article 6.1 c of the Data Protection Regulation?	6
3.4.1 Applicable provisions, etc.	6
3.4.2 IMY's assessment	7
3.5 Has the Education Committee had a legal basis for its video surveillance under Article 6.1 e of the Data Protection Regulation?	7
3.5.1 Applicable provisions, etc.	7
3.5.2 Has a task of public interest been established that can support the processing?	9
3.5.3 IMY's assessment of necessity and proportionality	10
3.6 Duty to inform and obligation to provide information	16
3.6.1 Duty to inform under the Camera Surveillance Act	16
3.6.2 Obligation to provide information under the Data Protection Regulation ...	17
Case number: DI-2021-5774 Date: 2023-10-03	
Swedish Authority for Privacy Protection Case number: DI-2021-5774 2(24) Date: 2023-10-03	
3.7 Choice of intervention	21
3.7.1 Applicable provisions	21
3.7.2 Should a sanction fee be imposed?	21
3.7.3 Determination of the sanction fee	22

3.7.4 Order	22
4. How to appeal	24
Swedish Authority for Privacy Protection	
Diary Number: DI-2021-5774	
3(24)	
Date: 2023-10-03	

1. Decision of the Swedish Authority for Privacy Protection

The Swedish Authority for Privacy Protection finds that the Education Committee of the City of Stockholm has processed personal data through video surveillance at Aspudden School from May 25, 2018, to October 3, 2023, in violation of

- the principle of lawfulness in Article 5.1 a of the General Data Protection Regulation¹,
- the principle of data minimization in Article 5.1 c of the General Data Protection Regulation,
- the requirement for a legal basis in Article 6.1 of the General Data Protection Regulation, and
- the obligation to provide information according to Article 13 of the General Data Protection Regulation.

The Swedish Authority for Privacy Protection decides, based on Articles 58.2 and 83 of the General Data Protection Regulation and Chapter 6, Section 2 of the Data Protection Act², that the Education Committee of the City of Stockholm, for the violation of Articles 5.1 a, 5.1 c, and 6.1 of the General Data Protection Regulation, shall pay an administrative fine of 800,000 (eight hundred thousand) kronor.

The Swedish Authority for Privacy Protection orders, based on Article 58.2 d of the General Data Protection Regulation, the Education Committee of the City of Stockholm to cease video surveillance at Aspudden School during operational hours, except for the video surveillance conducted for the purpose of preventing and monitoring arson, outside the door or entrance to toilet facilities in premises belonging to the upper secondary school, which means that only individuals passing in and out are monitored. This measure must be implemented no later than four weeks after this decision has become final.

The Swedish Authority for Privacy Protection orders, based on Article 58.2 d of the General Data Protection Regulation, the Education Committee of the City of Stockholm to take measures to ensure that there is information about the correct legal basis for the processing and information about the rights referred to in Article 13.2 b of the General Data Protection Regulation in the second information layer on the City of Stockholm's website. These measures must be implemented no later than four weeks after this decision has become final.

2. Account of the Supervision Case

2.1 Background

The Swedish Authority for Privacy Protection (IMY) has received complaints that Aspudden School, belonging to the City of Stockholm, conducts extensive video surveillance in large parts of the school and that no information about the video surveillance and the personal data processing that the surveillance entails has been provided to guardians and students. IMY has also received an anonymous tip stating that staff at the school have not been informed about the video surveillance and that there have been no signs regarding video surveillance at the entrances to the school. IMY has therefore initiated supervision against the Education Committee of the City of Stockholm (the Education Committee or the Committee), which has stated that the Committee is the data controller for the processing of personal data that occurs at Aspudden School.

¹ Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation).

² The Act (2018:218) with supplementary provisions to the EU General Data Protection Regulation.

Date: 2023-10-03

2.2 What has emerged in the case

The Education Committee of the City of Stockholm has stated the following in the matter.

Aspuddens School is a primary school with students from preschool class to grade 9. In October 2021, the school had 1,060 students, 150 teachers and other staff, as well as 22 substitute teachers. Video surveillance was introduced at the school in 2014 due to several instances of arson in the school premises, sometimes multiple fires per day. There are approximately 50 fixed-mounted cameras equipped with fixed optics in the school. The cameras monitor corridors, stairwells, and halls adjacent to doors, restrooms, and student lockers, and are installed in large parts of the school. No surveillance occurs in areas of the school accessible to the public. The cameras are activated by motion and monitoring occurs around the clock with image recording.

The purposes of the surveillance are to prevent and follow up on vandalism, bullying, fire, burglary, and other intrusions or damage to the school premises. The Education Committee has submitted compilations of incidents involving bullying that occurred at the school during the years 2018–2021, as well as a compilation of crimes and other events that took place at the school from October 2018 to May 2022. Furthermore, the Education Committee has stated that during the school year 2022/2023, physical bullying, visits from outsiders in the school premises, fires, and burglaries have continued to occur.

Aspuddens School has taken and continues to take other measures to prevent and promote safety and security at the school. The school has, among other things, considered locking the entrance doors to prevent unauthorized access but has determined that the students' need to move freely between school buildings outweighs the need to prevent unauthorized access. Additionally, the school has a safety team that works on strategic issues regarding student safety. The safety team also investigates incidents in the school day-to-day operations. Students are also involved in the safety work at the school through class, leisure, and student councils. To emphasize the seriousness of fires, annual fire training is held for grades 5 and 8. Supervisors are available at all levels with clear assignments and yellow vests so that they are easily visible. The intention of the supervisors' presence is to prevent conflicts, detect unauthorized individuals, and prevent vandalism. However, the presence of supervisors has not been sufficient as fires have still been set, particularly in restrooms.

The Education Committee has stated that during the assessment on August 24, 2023, it was determined that the need for video surveillance continues to exist to ensure safety and security for students and staff.

2.3 The scope of IMY's assessment in the matter

IMY's assessment in the matter is limited to the questions of whether the Education Committee's processing of personal data through video surveillance at Aspuddens School is supported by Article 6.1 of the General Data Protection Regulation, whether the Education Committee adheres to the principles of legality and data minimization in Article 5.1 a and c of the General Data Protection Regulation, whether the surveillance requires a permit under the Camera Surveillance Act, and whether the Education Committee fulfills the obligation to inform and provide information according to the Camera Surveillance Act (2018:1200) and the General Data Protection Regulation.

The reviewed video surveillance has been ongoing since 2014. Since the General Data Protection Regulation began to apply on May 25, 2018, IMY's assessment according to Swedish Data Protection Authority

Diary Number: DI-2021-5774

5(24)

Date: 2023-10-03

The General Data Protection Regulation is limited to the time thereafter. Circumstances related to the introduction of camera surveillance in 2014 and what has occurred up until May 25, 2018, are therefore outside the supervision of the Swedish Data Protection Authority (IMY).

3. Justification of the Decision

3.1 Applicable Legislation for the Education Board's Camera Surveillance

Camera surveillance typically involves the processing of personal data. Whether and to what extent it is permissible to conduct camera surveillance is regulated by the General Data Protection Regulation and the Camera Surveillance Act, which complements the General Data Protection Regulation.

3.1.1 General Data Protection Regulation

According to Article 2.1, the General Data Protection Regulation applies to the processing of personal data that is wholly or partly carried out by automated means. Article 4.1 of the General Data Protection Regulation states that any information relating to an identified or identifiable natural person is considered personal data. According to Article 4.2 of the General Data Protection Regulation, processing refers to an operation or a combination of operations concerning personal data, such as collection, recording, storage, reading, and deletion.

If a surveillance camera captures an identifiable person or any other personal data in an image, the rules of the General Data Protection Regulation must therefore be followed. Since IMY's assessment is that data concerning identifiable persons is processed through the current camera surveillance, the General Data Protection Regulation is applicable to the processing.

3.1.2 Camera Surveillance Act

Section 3(1) of the Camera Surveillance Act states that camera surveillance refers to a television camera, another optical-electronic instrument, or comparable equipment that, without being operated on-site, is used in such a way that it entails permanent or regularly repeated monitoring of individuals.

The current camera surveillance is not operated on-site and entails permanent monitoring of students, employees, and other visitors. IMY therefore assesses that the Camera Surveillance Act is applicable to the current surveillance.

3.2 Data Controller

The Education Board has stated that the board is the data controller for the processing of personal data that occurs through camera surveillance at Aspuddens School. What the board has stated is supported by the other investigations in the matter. IMY therefore assesses that the Education Board in Stockholm City is the data controller for the current personal data processing in the sense referred to in Article 4.7 of the General Data Protection Regulation.

3.3 Does the Education Board need permission for the camera surveillance?

The Camera Surveillance Act contains provisions regarding when permission is required for camera surveillance. According to Section 7 of the Camera Surveillance Act, permission is required for surveillance.

Swedish Authority for Privacy Protection

Diary Number: DI-2021-5774

6(24)

Date: 2023-10-03

of a location to which the public has access if the surveillance is conducted by an authority or someone other than an authority in the performance of a task of public interest that follows from law or other regulation, collective agreements, or decisions made under the authority of law or other regulation.

The Education Board is an authority and therefore needs, as a starting point, permission for camera surveillance, provided that the surveillance takes place in a location to which the public has access.

The public is generally not considered to have access to the indoor environment of a school. However, exceptions are made for the principal's office and the areas one passes through to get there (cf. the Administrative Court in Gothenburg's judgment in case no. 11460-17).

The Education Board has stated that there is no camera surveillance at the main entrance or the path leading to the principal's office. This is also evident from the drawing submitted by the Education Board. In light of what has been revealed about the locations for surveillance, the Swedish Authority for Privacy Protection (IMY) assesses that these are not locations to which the public has access.

Therefore, the Education Board does not need permission for the surveillance.

However, the fact that camera surveillance is exempt from permission does not mean that the surveillance is automatically permitted. Since the surveillance involves the processing of personal

data, the rules in the General Data Protection Regulation (GDPR) apply. The Camera Surveillance Act also contains, in addition to the provision on permission, for example, rules regarding the requirement for information that become relevant in the case of camera surveillance.

3.4 Has the Education Board had a legal basis for its camera surveillance according to Article 6.1 c of the General Data Protection Regulation?

For the Education Board's camera surveillance to be permissible, the provisions of the General Data Protection Regulation must be followed. This means, among other things, that the Education Board must have support for its camera surveillance in at least one of the legal bases specified in Article 6.1 of the General Data Protection Regulation.

The Education Board has stated that the legal basis on which the Board supports its processing of personal data through camera surveillance is a legal obligation under Article 6.1 c of the General Data Protection Regulation. The Board has indicated that Chapter 5 of the Education Act (2010:800) provides a right to a safe school environment for all students and that, due to the requirements of the Education Act, there is therefore a legal obligation as referred to in Article 6.1 c of the General Data Protection Regulation.

3.4.1 Applicable provisions, etc.

Article 6.1 of the General Data Protection Regulation states that processing is only lawful if at least one of the specified conditions in the article is met.

Article 6.1 c of the General Data Protection Regulation states that one of the conditions is that the processing is necessary for the fulfillment of a legal obligation to which the data controller is subject.

Article 6.3 of the General Data Protection Regulation states that the basis for processing referred to in 6.1 c of the General Data Protection Regulation must be established in accordance with Union law or the national law of a Member State to which the data controller is subject.

According to Chapter 2, Section 1 of the Data Protection Act, personal data may be processed based on Article 6.1 c of the General Data Protection Regulation if the processing is necessary for the data controller to fulfill a legal obligation that follows from law.

Swedish Authority for Privacy Protection

Diary Number: DI-2021-5774

7(24)

Date: 2023-10-03

or other legislation, collective agreements, or decisions made under the authority of law or other legislation.

A legal obligation cannot serve as a legal basis for the processing of personal data if the obligation is too vague and gives the data controller too much discretion regarding how it should be fulfilled.³ The degree of clarity and precision required regarding the legal basis for a specific processing of personal data must be assessed on a case-by-case basis, based on the nature of the processing and the activity. Processing of personal data that does not constitute a significant infringement of personal integrity can occur based on a legal basis that is generally formulated. A more significant intrusion requires that the legal basis is more precisely defined, thereby making the intrusion foreseeable.⁴

3.4.2 IMY's Assessment

IMY notes that the obligation under Chapter 5 of the Education Act that the Education Board has invoked is established in the manner specified in Chapter 2, Section 1 of the Data Protection Act. However, IMY finds that the processing in question is of a sensitive nature since it involves surveillance of children in a location where they are required to be due to compulsory schooling. The surveillance also includes employees. This means that higher demands are placed on the specification of the legal obligation. The provision in Chapter 5, Section 3 of the Education Act is relatively general. It states that the principal has an obligation to ensure that preventive work is conducted at the school unit aimed at creating safety and conducive study conditions. IMY believes that Chapter 5, Section 3 of the Education Act is not sufficiently clear and precise to serve as a basis for the sensitive processing of personal data that is relevant in this case, according to Article 6.1(c) of the Data Protection Regulation.⁵

Thus, the processing in question cannot be supported by Article 6.1(c) of the Data Protection

Regulation.

3.5 Has the Education Board had a legal basis for its surveillance according to Article 6.1(e) of the Data Protection Regulation?

The Education Board has stated that if IMY finds that the Board cannot support its processing of personal data on the legal basis in Article 6.1(c) of the Data Protection Regulation, then the processing should be supported by Article 6.1(e) of the Data Protection Regulation. According to the Board, the regulation in Chapter 5, Section 3 of the Education Act establishes the basis for the processing required to meet the requirement in Article 6.3 of the Data Protection Regulation.

3.5.1 Applicable Provisions, etc.

According to Article 6.1(e) of the Data Protection Regulation, personal data may be processed if the processing is necessary for the performance of a task carried out in the public interest or as part of the exercise of official authority vested in the data controller.

According to Article 6.3 of the Data Protection Regulation, the basis for the processing referred to in Article 6.1(e) must be established in accordance with Union law or the national law of a Member State to which the data controller is subject. According to Chapter 2, Section 2 of the Data Protection Act, personal data may be processed based on Article 6.1(e) of the Data Protection Regulation if

3 Cf. SOU 2017:39 p. 114 f., Article 29 Working Party Opinion 6/2014, WP 217, p. 20 f., and the Administrative Court of Stockholm's judgment 2020-06-17 in case no. 9379-19 and 9408-19.

4 Prop. 2017/18:105 p. 51.

5 Cf. EDPB Guidelines 3/2019 on the processing of personal data through video devices, adopted on January 29, 2020, p. 9.

Swedish Authority for Privacy Protection

Diary Number: DI-2021-5774

8(24)

Date: 2023-10-03

The processing is necessary to perform a task of general interest as stipulated by law or other regulations, by collective agreements, or by decisions made under the authority of law or other regulations, or as part of the data controller's exercise of authority according to law or other regulations.

Recital 41 states that the legal basis should be clear and precise, and its application foreseeable for those affected by it, in accordance with the case law of the EU Court of Justice and the European Court of Human Rights. The degree of clarity and precision required regarding the legal basis that establishes the task or exercise of authority for a specific processing of personal data to be considered necessary must, according to the government, be assessed on a case-by-case basis, based on the nature of the processing and the activity. A processing of personal data that does not constitute a real infringement of personal integrity, such as the processing of students' names in regular school activities, can, according to the government, occur based on a legal basis that is generally formulated. However, a more significant intrusion, for example, the processing of sensitive personal data within healthcare, requires that the legal basis is more specified and thus makes the intrusion foreseeable. In assessing whether a task or exercise of authority follows from, for example, a legal provision, statements from preparatory works, the purpose of the provision, and the legal context in which the provision exists may need to be considered. It is therefore not only the wording of the law that is relevant to determine whether something follows from the law.

For Article 6.1(e) of the General Data Protection Regulation to serve as the basis for a processing of personal data, it is not only required that the data controller has a task of general interest established in national law or EU law. The processing in question must also be necessary to perform the task of general interest. Recital 39 of the General Data Protection Regulation states that personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means. Regarding the requirement for necessity, the EU Court of Justice has stated that the requirement is not met when the pursued goal of general interest can reasonably be achieved in an equally effective manner by other means that restrict the fundamental rights of the data subjects to a lesser extent,

particularly the right to respect for private life and the right to protection of personal data according to Articles 7 and 8 of the Charter. The EU Court of Justice has further stated that exceptions from and restrictions on the principle of protection of personal data must not go beyond what is strictly necessary. The data controller must therefore, even when acting within the framework of its task of general interest, not generally and indiscriminately collect personal data, but must refrain from collecting data that is not absolutely necessary in relation to the purpose of processing this data. The necessity criterion should be viewed against the background that exceptions and limitations of the protection of personal data should be restricted to what is absolutely necessary. At the same time, it follows from practice that the necessity criterion can

6 Prop. 2017/18:105 p. 51

7 See Sören Öman, General Data Protection Regulation (GDPR) etc. (October 13, 2022, Version 2A, JUNO), the commentary on Article 6 under the heading Led e – Task of general interest or exercise of authority.

8 EU Court of Justice ruling Latvijas Republikas Saeima, C-439/19, EU:C:2021:504, paragraph 110.

9 EU Court of Justice ruling Valsts ieņēmumu dienests, C-175/20, EU:C:2022:124, paragraph 74.

10 EU Court of Justice ruling Rīgas satiksme, C-13/16, EU:C:2017:336, paragraph 30.

Swedish Authority for Privacy Protection

Diary Number: DI-2021-5774

9(24)

Date: 2023-10-03

is considered fulfilled if it contributes to efficiency¹¹, which was also emphasized in the preparatory works for the Data Protection Act¹².

Case law also indicates that the requirement for necessity must be assessed together with the principle of data minimization according to Article 5.1(c) of the General Data Protection Regulation, under which personal data collected must be adequate, relevant, and not excessive in relation to the purposes for which they are processed.¹³

In Chapter 5, Section 3, first and second paragraphs of the Education Act, it is stated that all students shall be guaranteed a school environment where education is characterized by safety and teaching by a conducive learning atmosphere. It is the principal who must ensure that preventive work is conducted at the school unit aimed at creating safety and a conducive learning atmosphere.

3.5.2 Has a task of public interest been established that can support the processing?

A difference between the legal grounds in Article 6.1(c) and Article 6.1(e) of the General Data Protection Regulation is that the latter provision does not require a precisely defined legal obligation. A task of public interest according to Article 6.1(e) can be described more generally.¹⁴ This means that the legal regulation in Chapter 5, Section 3 of the Education Act, even if it cannot serve as a basis for personal data processing according to Article 6.1(c) of the General Data Protection Regulation, can serve as a basis for processing according to Article 6.1(e) of the General Data Protection Regulation.¹⁵

IMY initially notes that neither in Chapter 5, Section 3 of the Education Act nor in the preparatory works for the provision is it explicitly stated that camera surveillance may occur to create a safe school environment. However, the wording in Article 6.3, first paragraph of the General Data Protection Regulation indicates that what must be established in Union law or national law is the basis for processing referred to in Article 6.1(e). Thus, a regulation in national law of the personal data processing to be carried out based on this ground is not required. It is sufficient that the task of public interest is established in national legislation.¹⁶

IMY notes that Chapter 5, Section 3 of the Education Act includes a task of public interest that has been established in Swedish law in the manner indicated in Article 6.3 of the General Data Protection Regulation and Chapter 2, Section 2 of the Data Protection Act.

For the provision to serve as a basis for the current personal data processing, it is required that the legal basis is sufficiently clear and precise and that its application is foreseeable for the data subjects (see Recital 41 of the General Data Protection Regulation).

As IMY has already noted, camera surveillance that occurs in a school is a privacy-sensitive personal

data processing. The nature of the personal data processing therefore imposes certain requirements on the formulation of the legal basis.

The preparatory works for the relevant provision in the Education Act indicate, among other things, the following. The principal must ensure that preventive work is conducted at the school unit aimed at creating safety and a conducive learning atmosphere. That students

11 Court of Justice of the European Union ruling Huber, C-524/06, EU:C:2008:724, paragraph 62.

12 Prop. 2017/18:105 p. 46 f.

13 Court of Justice of the European Union ruling of December 11, 2019, TK, C-708/18, EU:C:2019:1064, paragraph 48.

14 Cf. The EU General Data Protection Regulation (GDPR) A Commentary, ed. Kuner et al., 2020, p. 600.

15 Cf. Prop. 2017/18:105 p. 53 f.

16 Cf. Prop. 2017/18:105, p. 49.

Swedish Authority for Privacy Protection

Diary Number: DI-2021-5774

10(24)

Date: 2023-10-03

Feeling safe is crucial for students' learning and development.¹⁷ The work on safety in schools includes both creating a secure environment and preventing and counteracting violations, as well as promoting norms and values.¹⁸ Preventive work involves, among other things, that schools and authorities monitor students' safety as well as their study environment. It also means that schools and authorities analyze what obstacles exist for students to feel safe and have a conducive study environment, and actively work to remove these obstacles. The concept of safety should be linked to the concept of education to clarify that students should feel safe in all aspects related to their education.¹⁹

IMY notes that camera surveillance can be considered a commonly used tool to ensure safety and security in various types of environments. It is reasonable to assume that camera surveillance may be used if necessary to ensure a safe and secure school environment in the municipality's premises.

Against this background, IMY assesses that Chapter 5, Section 3 of the Education Act is sufficiently clear and predictable to serve as a basis for camera surveillance.

For the provision to serve as the basis for the current personal data processing, it is further required, according to Article 6.3 of the General Data Protection Regulation, that it is proportional to the legitimate aim pursued. IMY states that the requirement for proportionality in Article 6.3, according to the wording, refers to the design of the national legislation that should form the basis for the processing, i.e., in this case, Chapter 5, Section 3 of the Education Act. However, it is not possible to make a complete assessment of whether the requirement for proportionality is met solely based on this provision. This circumstance does not exclude, according to IMY's assessment, that the provision in the Education Act can constitute a legal basis for the personal data processing. From the case law of the Court of Justice of the European Union, it follows that the more detailed assessment of the requirement for proportionality can be made based on the circumstances surrounding the actual personal data processing.²⁰

The assessment of whether the requirement for proportionality according to Article 6.3 is met should appropriately occur in conjunction with the assessment of whether the processing has been necessary in the sense referred to in Article 6.1 e of the General Data Protection Regulation.

3.5.3 IMY's assessment of necessity and proportionality

For the Education Committee's personal data processing through camera surveillance to be permissible, it is required that the processing is necessary to perform the task of public interest regulated in the Education Act and that the processing is proportionate in relation to the aim pursued. The assessment of necessity and proportionality is closely linked to the principle of data minimization according to Article 5.1 c of the General Data Protection Regulation, which means that personal data collected should be adequate, relevant, and not excessive in relation to the purposes for which they are processed. The Education Committee has stated that the purposes of the camera surveillance are

to prevent and monitor vandalism, bullying, fire, burglary, and other intrusions or damage to school premises. IMY notes that necessity and proportionality need to be assessed based on each respective purpose. In light of what is evident from the investigation in the matter, IMY also finds reason to distinguish the assessment of the purpose of preventing and stopping arson from other types of criminality. There is also reason to assess the different purposes with regard to

17 Prop. 2021/22:160 p. 28.

18 Prop. 2021/22:160 p. 42.

19 Prop. 2021/22:160 p. 229.

20 Judgment of the Court of Justice of the European Union Norra Stockholms Bygg AB, C-268/21, EU:C:2023:145, paragraphs 54-59.

Swedish Authority for Privacy Protection

Diary Number: DI-2021-5774

11(24)

Date: 2023-10-03

Surveillance by cameras that occurs during operational hours and after operational hours. By operational hours, it is meant the time when school activities are conducted in the premises and students and staff are present in the school.

Before IMY assesses the situation based on the various purposes of the camera surveillance, it is appropriate to make a general assessment of the privacy interests involved in the surveillance that occurs during operational hours. The school is a workplace for students who, due to compulsory schooling, must be present there during operational hours. The school is also a workplace where employees, who are in a dependent relationship with their employer, must be present during working hours.

Camera surveillance at schools can give rise to specific privacy risks. For example, it may enable mapping of staff's work efforts or the habits of staff and students in general. An employee does not generally expect to be monitored by their employer at their workplace.²¹ Furthermore, personal data concerning children is considered particularly worthy of protection.²² This means that the privacy interest in schools, as a starting point, weighs heavily. The fact that the surveillance involves video recording further increases the privacy interest.

The investigation shows that camera surveillance at Aspuddens School occurs in most of the school's buildings. Surveillance takes place in corridors, stairwells, and halls. Surveillance in corridors occurs where there are student lockers, tables, and benches. Surveillance also takes place outside toilets, outside the cafeteria where there is space for hanging coats, and in halls for dressing and undressing for younger students. The area of coverage also includes certain teaching spaces for younger students. IMY therefore concludes that the monitored locations are those where students gather and socialize for a significant part of the time they spend at school. According to IMY's assessment, the privacy interest weighs particularly heavily in places where students may be present for an extended period, such as teaching areas and seating in corridors. Surveillance that occurs in such places in the school during school hours must generally be regarded as a significant intrusion into the privacy of students and staff. This means that there must be a substantial need for the surveillance.²³ The privacy-sensitive nature of the surveillance also requires careful considerations of alternative or less privacy-sensitive approaches.

Purpose: To prevent and follow up on break-ins and theft after operational hours

The Education Committee has stated that the current camera surveillance operates around the clock, which means that surveillance also occurs when there is no school activity in the premises. The investigation in the matter indicates that incidents of break-ins and theft have occurred after operational hours.

Regarding the camera surveillance that occurs after operational hours, the privacy interest weighs less heavily. IMY finds no reason to question the legality of the surveillance in light of the issues with break-ins and theft indicated by the investigation, provided that the camera surveillance occurs when no authorized person is present in the premises. The matter has not been investigated further regarding the extent to which the surveillance outside operational hours may include individuals, such

as visitors during rentals or cleaning staff, who have the right to be in the premises, and therefore there is no basis to assess whether such surveillance had a legal basis according to Article 6.1 of the General Data Protection Regulation. However, IMY emphasizes the importance of the Education Committee in

21 European Data Protection Board (EDPB) Guidelines 3/2019 on the processing of personal data through video devices, version 2.0, adopted on January 29, 2020, point 37.

22 Recital 38 of the General Data Protection Regulation.

23 Cf. the Supreme Administrative Court's ruling on March 22, 2012, in case no. 914-11.

Swedish Authority for Privacy Protection

Diary Number: DI-2021-5774

12(24)

Date: 2023-10-03

In accordance with the principle of accountability in Article 5.2, a careful assessment is made of whether there is a legal basis for such monitoring.

Purpose: to prevent and follow up on arson during operational hours

The investigation in the matter shows that there have been five cases of arson or attempts at arson in the school during the period from October 2018 to May 2022. The fires have occurred in restrooms and in a changing room. Only in two cases have fires occurred in a location where there was a camera nearby. According to the Education Committee, there have also been fires in the school during the academic year 2022/2023. The Education Committee has stated that the reason for the camera surveillance in the school in 2014 was problems with arson that occurred sometimes several times a day. Furthermore, the Education Committee has stated that despite the presence of playground supervisors, arson has still occurred and that cameras outside restrooms in the middle school have facilitated prompt investigations when a fire has arisen.

The Swedish Authority for Privacy Protection (IMY) notes that arson is a serious event that can pose a threat to life and health and can also have significant consequences regarding property. The arson incidents have mostly occurred inside restrooms where no camera surveillance has taken place, but the surveillance outside the restrooms is reported to have facilitated the investigation of the fires. The investigation in the matter shows that incidents of arson have primarily occurred in areas where middle school students are present, and the Education Committee has stated that cameras outside restrooms in the middle school have facilitated prompt investigations when a fire has arisen.

In light of the seriousness and the consequences that arson in the school can cause, the school's history of arson, the insufficient presence of playground supervisors, and the continued occurrence of arson, IMY believes that the current camera surveillance that has taken place in areas belonging to the middle school for the purpose of preventing and following up on fires can, in itself, be considered to meet the requirements of necessity and proportionality. This is despite the fact that areas just outside restrooms are particularly sensitive in terms of privacy and that the extent of the arson incidents has been relatively limited.

However, a prerequisite for the camera surveillance for this purpose to be considered necessary is that the cameras' field of view has been limited to an area in close proximity to the restroom facilities and has not encompassed more than what has been necessary in relation to the purpose of the surveillance in accordance with the principle of data minimization under Article 5.1 c of the General Data Protection Regulation. IMY notes that the investigation shows that the cameras that were relevant in the investigation of the fire were directed along the corridors and essentially monitored these in their entirety and not just in connection with restroom facilities. The investigation shows, among other things, that one of the cameras used for the investigation of a fire also monitored the entrance to the school health care facilities, which is a particularly sensitive area in terms of privacy. Overall, IMY finds, based on what has emerged in the matter, that a certain part of the surveillance that has taken place outside restroom facilities in areas belonging to the middle school has been necessary and proportionate to ensure safety in the school. This part of the surveillance covers a limited area just outside the door or entrance to the restroom facilities. For the surveillance to meet the requirements of necessity and proportionality, it is required that only individuals who pass in and out of the restroom

facilities are monitored. For the limited surveillance outside restrooms in areas belonging to the middle school, IMY assesses that the Education Committee's processing through camera surveillance had a legal basis under Article 6.1 e of the General Data Protection Regulation. This assessment is based on the investigation presented in the matter.

Swedish Authority for Privacy Protection

Diary Number: DI-2021-5774

Page: 13(24)

Date: 2023-10-03

The assessment may change if circumstances change, which is why there is an obligation for the Education Board to continuously and regularly reassess whether the surveillance is permissible.

The camera surveillance that has taken place beyond this area has, however, been more extensive than necessary, which is why there has been a lack of legal basis under Article 6.1 e of the General Data Protection Regulation for that part of the surveillance. According to IMY's assessment, there is also no other legal basis in Article 6.1 e that could justify that camera surveillance. Thus, the camera surveillance has been conducted in violation of Article 6.1 of the General Data Protection Regulation. Since the processing has concerned children who, due to their compulsory schooling, have been required to be in school, as well as employees in a dependent relationship with their employer, IMY assesses that the lack of legal basis is such a fundamental violation that the Education Board's processing has also occurred in violation of the principle of legality in Article 5.1 a of the General Data Protection Regulation. IMY also assesses that the processing has occurred in violation of the principle of data minimization in Article 5.1 c of the General Data Protection Regulation, as it has included more personal data than necessary.

Purpose: Preventing and following up on bullying during operational hours

The investigation shows that there has been bullying in the school's corridors. It is also evident that bullying has occurred in all grade levels (preschool class–grade 9) and that the number of incidents does not differ significantly between the grade levels.

According to Chapter 6, Section 3 of the Education Act, bullying is defined as behavior that, without being discrimination under the Discrimination Act (2008:567), violates a child's or student's dignity.

According to the preparatory works, this refers to bullying and similar behaviors based on factors such as someone being overweight, having a certain hair color, or being a "nerd," etc. Bullying can also occur without the perpetrator specifying any particular characteristic of the child or student being bullied. Expressing dissatisfaction without verbal derogatory remarks about, for example, someone's hair color or clothing, by pushing, pulling someone's hair, or tripping the person in question can also constitute bullying in the legal sense. Psychological bullying, such as social exclusion, is also included in the term bullying.

The Education Act requires, among other things, that the principal ensures that measures are taken to prevent and stop children and students from being subjected to bullying, and that the principal promptly investigates the circumstances surrounding reported bullying. How the investigation should proceed depends on the circumstances of the individual case. In some situations, it may be sufficient to clarify the incident through a few questions, thereby resolving it. In such cases, the relevant institution can be considered to have fulfilled its obligation to investigate. However, such a simple investigation can only be deemed sufficient if it is clear that the incident was trivial. In other, more complicated cases of bullying, the obligation to investigate may be more extensive and involve more children or students as well as staff.

IMY notes that the concept of bullying is broad and encompasses many different types of actions, and that the severity of the bullying can vary.

24 Prop. 2007/08:95 p. 575.

25 Chapter 6, Sections 7 and 10 of the Education Act.

26 Prop. 2005/06:38 p. 141.

Swedish Authority for Privacy Protection

Diary Number: DI-2021-5774

14(24)

Date: 2023-10-03

vary. Harassment can consist of anything from physical blows and kicks to verbal derogatory words and exclusion. The documentation provided by the Education Committee also shows that the harassment that has occurred at Aspuddens School has been of varying types. IMY further notes that there is a statutory obligation for the principal to work preventively against harassment in order to counteract harassment of children and students in schools. In cases where harassment does occur, the investigative obligation that falls on the principal varies depending on how complicated the cases are.

As IMY has noted above, camera surveillance in schools constitutes a privacy-infringing processing of personal data. IMY believes that camera surveillance as a general measure aimed at preventing and following up on harassment cannot be considered either proportionate in relation to the purpose or necessary to fulfill the obligations imposed on the principal under the Education Act. The Education Committee has stated that camera surveillance can be used to more easily investigate harassment but has not described the need for camera surveillance for the relevant purpose in more detail than that. In addition, it has not been shown that the Education Committee has made any special considerations regarding the camera surveillance in light of the cases of harassment that have occurred at Aspuddens School. Therefore, IMY assesses that what the Education Committee has stated and what has otherwise emerged in the case is not sufficient to demonstrate such a significant interest in camera surveillance as is required to justify the surveillance. IMY therefore concludes that the camera surveillance conducted for the purpose of preventing and following up on harassment cannot be considered necessary and proportionate to carry out the relevant task of public interest.

The Education Committee has therefore lacked a legal basis under Article 6.1 e of the General Data Protection Regulation for the camera surveillance that has taken place for this purpose. According to IMY's assessment, there is also no other legal basis in Article 6.1 e that could have justified the camera surveillance. The camera surveillance has thus been conducted in violation of Article 6.1 of the General Data Protection Regulation.

IMY assesses that the camera surveillance has also been conducted in violation of the principle of legality in Article 5.1 a of the General Data Protection Regulation, as the processing has concerned children who, due to their compulsory schooling, have been required to be present in school, as well as employees in a dependent relationship with their employer.

Purposes of preventing and following up on vandalism, theft, intrusion, and other damage in the school during operational hours

The compilation of crimes and other incidents that the Education Committee has submitted in the case shows that, during daytime, there have been over 20 incidents during the period from October 2018 to May 2022 at Aspuddens School consisting of vandalism, theft, and intrusion by unauthorized persons. The Education Committee has stated that visits from unauthorized persons have also occurred during the school year 2022/2023. The Education Committee has also stated that certain alternative measures have been taken to address the issues at Aspuddens School, such as a safety team that works in various ways with issues concerning safety and the presence of playground supervisors. Furthermore, it has been stated that the school has considered locking the entrance doors to prevent intrusion by unauthorized persons, but has assessed that the students' need to move freely between school buildings has been greater than the need to prevent intrusion.

The Education Committee has further stated that the camera surveillance was introduced in 2014 and that the surveillance was expanded with more cameras in 2017. According to the Education Committee,

Swedish Authority for Privacy Protection

Diary Number: DI-2021-5774

15(24)

Date: 2023-10-03

The camera surveillance has been limited to the areas where incidents of a serious nature have occurred or are occurring.

IMY notes that the purposes of preventing and following up on vandalism, theft, trespassing, and other

damage in the school are legitimate purposes and can be considered compatible with the task of ensuring preventive work aimed at creating a safe school environment. IMY also notes that it is not excluded that surveillance conducted for these purposes may be deemed necessary depending, among other factors, on the problem picture that can be demonstrated in the individual case through documentation, as well as how the surveillance has otherwise been arranged in terms of scope, time, and place.

As IMY has noted above, camera surveillance in a school during operational hours is a privacy-sensitive measure, and therefore, there must be a significant need for the surveillance to be justified. This, in turn, means that the data controller, in accordance with the principle of accountability under Article 5.2 of the General Data Protection Regulation, needs to conduct a thorough analysis and inventory of the problems that the camera surveillance aims to address. Such a needs analysis is necessary to assess how the purposes of the camera surveillance can be achieved in the least privacy-sensitive manner and whether the camera surveillance can be a necessary and proportionate measure. In cases where a problem inventory shows that there is a real problem picture of a certain type or extent, such alternative and less privacy-intrusive measures could, for example, be to limit the scope of the camera surveillance to only certain specific locations or times. The use of privacy-friendly technology, such as masking and the use of only low-resolution images, is also an example of such measures. Only if a less privacy-sensitive approach has not proven to achieve the intended effect does IMY consider that it might be relevant to consider a more intrusive or more extensive processing. IMY notes that the Education Committee has taken certain alternative measures to ensure safety in the school. However, it has not emerged that the Education Committee, during the period covered by this supervision, has made such thorough considerations of alternative and less privacy-sensitive measures as required in this type of privacy-sensitive personal data processing. Such considerations could, for example, have led to the conclusion that the need for camera surveillance no longer existed, that other measures were deemed sufficient, or in cases where the need for camera surveillance was still considered to exist, that the cameras were limited to the locations where it was actually necessary to monitor in order to achieve the relevant purpose. IMY notes, for example, based on the compilation of crimes and other incidents, that during the period from October 2018 to May 2022, incidents in the form of vandalism, theft, and trespassing have occurred primarily in two of the six school buildings that are monitored. A few isolated incidents have occurred in a third building. In some of the monitored school buildings, there are thus no reported incidents. Furthermore, IMY notes that the incidents that have occurred have been of limited scope and severity. What the Education Committee has presented and what has otherwise emerged from the investigation does not support the existence of a particularly severe problem picture with crime at Aspuddens School that could justify the camera surveillance. IMY also notes that the school has chosen not to use a less privacy-sensitive measure with a system of locked doors and access for students despite problems with trespassing by unauthorized individuals during operational hours.

Swedish Authority for Privacy Protection

Diary Number: DI-2021-5774

16(24)

Date: 2023-10-03

The necessity requirement shall, as mentioned above, be assessed together with the principle of data minimization in Article 5.1(c) of the General Data Protection Regulation, which stipulates that the personal data collected must be adequate, relevant, and not excessive in relation to the purposes for which they are processed. IMY finds, based on what has emerged in the case, that the surveillance has been too extensive and has resulted in the collection of more personal data than necessary in relation to the purposes for which they were collected. The surveillance that has taken place in large parts of the school has further resulted in a significant amount of data being collected daily that is not relevant to the purposes of the surveillance.

IMY assesses that the surveillance, as it has been conducted during operational hours, has been more intrusive and more extensive than necessary to perform the relevant task of public interest. The surveillance conducted during operational hours for the purpose of preventing and following up on

vandalism, burglary, and other intrusions or damage to school premises has therefore not met the requirements of necessity and proportionality under the General Data Protection Regulation. The Education Committee has thus lacked a legal basis for this surveillance under Article 6.1(e) of the General Data Protection Regulation. According to IMY's assessment, there is also no other legal basis in Article 6.1(e) that could have justified the surveillance. The surveillance has thus been conducted in violation of Article 6.1 of the General Data Protection Regulation. IMY assesses that the surveillance has also been conducted in violation of the principle of lawfulness in Article 5.1(a) of the General Data Protection Regulation, as the processing has concerned children who, due to their compulsory schooling, have been required to be present at school, as well as employees in a dependent relationship with their employer. IMY also assesses that the processing has been conducted in violation of the principle of data minimization in Article 5.1(c) of the General Data Protection Regulation.

3.6 Duty to Inform and Obligation to Provide Information

Those who conduct surveillance have extensive obligations to inform the affected individuals about the ongoing surveillance. Section 15 of the Camera Surveillance Act contains a requirement that information about surveillance must be provided through clear signage or in some other effective manner. In addition, the data controller responsible for the surveillance must provide information about the surveillance and the personal data processing that the surveillance entails in accordance with Articles 12 and 13 of the General Data Protection Regulation. IMY shall therefore assess whether the Education Committee has complied with the requirements of these provisions regarding its surveillance.

3.6.1 Duty to Inform According to the Camera Surveillance Act

The requirement for information according to the Camera Surveillance Act means that anyone conducting surveillance at a location must inform about this. The provision concerns the actual use of surveillance equipment and not the processing of personal data that the surveillance entails.²⁷ The provision does not contain any other requirements regarding what information must be provided. The duty to inform can therefore be considered fulfilled if the person conducting the surveillance clearly informs that surveillance is taking place at a certain location. This information must be provided through signage or in some other effective manner.

The investigation in the case shows that the school, since the surveillance began, has had signs about surveillance directly inside the entrances of each building.

27 Prop. 2017/18:231 p. 88 f.

Swedish Authority for Privacy Protection

Diary Number: DI-2021-5774

17(24)

Date: 2023-10-03

and at the entrance to corridors where stairwells lead from the entrances to corridors where surveillance occurs. Camera surveillance has not taken place in the area between the outer and inner entrances. Since October 2021, the signs regarding camera surveillance have been placed on the outer entrance doors so that they are visible even to individuals outside the building. IMY assesses that the Education Committee has provided information about the surveillance through clear signage and thereby fulfilled the information requirement in Section 15 of the Camera Surveillance Act. The next question is whether the Education Committee has complied with the information requirements under the General Data Protection Regulation (GDPR).

3.6.2 Information Obligation under the General Data Protection Regulation

Applicable Provisions

Articles 12–14 of the General Data Protection Regulation contain provisions regarding what information the data controller must provide to the data subject in all forms of personal data processing, including through camera surveillance.

Article 12.1 of the General Data Protection Regulation states, among other things, that the data controller shall take appropriate measures to provide the data subject with all information referred to in Articles 13 and 14 in a concise, clear, and understandable form, using clear and plain language. This is

particularly relevant if the information is directed at children. Furthermore, it is stated that the information shall be provided in writing, or in another form, including, where appropriate, in electronic form. Recital 58 indicates that since children deserve special protection, all information and communication directed at children should be formulated in clear and simple language that the child can easily understand.

Article 13 of the General Data Protection Regulation regulates what information must be provided when personal data is collected directly from the data subject, while Article 14 regulates what information must be provided when personal data is collected from someone other than the data subject.

The European Data Protection Board (EDPB) has assessed in its guidelines that Article 13, and not Article 14 of the General Data Protection Regulation, is applicable in personal data processing through the use of camera surveillance.²⁸ According to Article 70 of the General Data Protection Regulation, the EDPB is tasked with ensuring that the General Data Protection Regulation is applied consistently and shall, for this purpose, decide on guidelines for the interpretation of the General Data Protection Regulation. The EDPB thus plays a central role in ensuring the harmonization of the regulatory framework, which is one of the two main purposes of the General Data Protection Regulation (see Article 1 and Recitals 9 and 10). The guidelines from the EDPB provide important support both in the activities of supervisory authorities and in the work of data controllers to meet the requirements of the regulation. However, the Administrative Court in Stockholm, in its judgment on January 26, 2023, in case no. 1552-22, assessed that it is not Article 13 of the General Data Protection Regulation but Article 14 that should be applicable in personal data processing through camera surveillance. IMY has appealed the judgment to the Supreme Administrative Court (case no. 870-23), and thus the Administrative Court's judgment has not become final. Considering the position that the EDPB's guidelines hold under the regulation and pending a final ruling, IMY bases its assessment on the EDPB's guidelines and that Article 13 of the General Data Protection Regulation should be applied in this case.

²⁸ WP260 Guidelines on Transparency under Regulation (EU) 2016/679, adopted on April 11, 2018, point 26 (EDPB has confirmed these guidelines through a special decision, see Endorsement 1/2018) and EDPB's guidelines 3/2019, for the processing of personal data through video devices, version 2.0, adopted on January 29, 2020, points 110–119.

Swedish Data Protection Authority

Reference Number: DI-2021-5774

18(24)

Date: 2023-10-03

According to Article 13.1 of the General Data Protection Regulation (GDPR), the data subject must be informed about, among other things, the identity and contact details of the data controller, the purposes of the processing for which the personal data are intended, and the legal basis for the processing. Furthermore, the data subject must be informed, according to Article 13.2 of the GDPR, about the period for which the personal data will be stored, that there is a right to request access to and rectification or erasure of personal data or restriction of processing concerning the data subject, or to object to processing, as well as the right to lodge a complaint with a supervisory authority.

Article 13.4 of the GDPR states that points 1, 2, and 3 of Article 13 do not apply if and to the extent that the data subject already has the information.

The information must, in principle, be provided to the data subject before the processing of the data subject's personal data begins. Given that there is a large amount of information to be provided to the data subject, the EDPB has developed guidelines on how the data controller can comply with the requirements of Articles 12 and 13 of the GDPR.²⁹ These guidelines indicate that the data controller may use a layered approach to provide the information specified in Article 13 of the GDPR. The layered approach means that the information that is most important to the data subject should be presented before the data subject enters the monitored area, for example, on a sign (the first layer of information). Other information can be provided in another way, such as on a website or in a complete information sheet at a central location, such as at an information desk or in a reception area (the

second layer of information). The EDPB's guidelines were adopted at the end of January 2020. The guidelines indicate that the information that is most important to the data subject and should therefore be included in the first layer of information may vary depending on how and where the monitoring takes place. Generally, the first layer of information should include the identity and contact details of the data controller, the purpose of the monitoring, the rights of the data subject, and information about the main impact of the processing (for example, storage period, publication of material, or transfer of material to third parties).³⁰ The first layer of information should also include any information that may be surprising to the data subject, such as whether material is transferred to third parties or if there is a long storage period for the recorded material.³¹ Finally, the first layer of information should contain a reference to how the data subject can access the second layer of information, for example, through a link to a website, a QR code, or a phone number that the data subject can call.³²

The Article 29 Working Party, which has now been replaced by the EDPB, has stated in guidelines on transparency under the GDPR that data controllers are obliged, according to the specific transparency measures to be taken regarding children under Article 12.1 (supported by recitals 38 and 58 of the GDPR), to ensure that all information and communication is provided in clear and plain language or through a medium that is easily understandable for children, if they are directed at children or are aware that their goods or services are particularly used by children of reading and writing age.³³ To avoid

29 EDPB Guidelines 3/2019, points 110-119.

30 EDPB Guidelines 3/2019, points 114 and 116.

31 EDPB Guidelines 3/2019, point 115.

32 EDPB Guidelines 3/2019, point 114.

33 WP260 Guidelines on Transparency under Regulation (EU) 2016/679, adopted on April 11, 2018, point 15.

Swedish Authority for Privacy Protection

Diary Number: DI-2021-5774

19(24)

Date: 2023-10-03

doubt, the transparency measures should also be directed towards individuals who have parental responsibility for children who are very young or not literate, as such children are likely, in most cases, to be unable to understand even the simplest messages about transparency provided in written or other forms.³⁴

How the Education Committee provides information about surveillance to the registered
The Education Committee has stated in the matter that until August 2021, signs in the form of stickers regarding camera surveillance were placed directly inside the entrances of each building and at the entrance to corridors where stairwells lead from the entrances to corridors where surveillance occurs. In August 2021, new camera signs were put up that better meet the information requirements set by the General Data Protection Regulation. In October 2021, the camera signs were moved to all external entrances to the school where surveillance takes place. The Education Committee has submitted images showing what the new signs look like. On the signs, which constitute the first layer, the Education Committee informs the registered individuals that the committee conducts camera surveillance at the location, the purpose of the surveillance, that image material without sound is recorded, and the retention period for recorded material. Furthermore, there is information that the material may be handed over to investigative authorities during criminal investigations and that the registered individuals being monitored have the right to access their personal data and request that it be deleted. For further information, reference is made to the City of Stockholm's website. The sign also includes contact details for the data controller and the data protection officer.

On the City of Stockholm's website, which can be considered the second layer, the Education Committee provides information that the camera surveillance occurring in the school is based on a legal obligation, which constitutes the legal basis for the processing. The website further contains

information about whom to contact in case of questions regarding the camera surveillance and that individuals should turn to the school or the data protection officer with comments and complaints, as well as the possibility to submit complaints to IMY.

Since the start of the school year in August 2021, the school and the principal have implemented new routines to inform about camera surveillance. The new routines mean that the principal communicates the use and purpose of the camera surveillance to all students and guardians in a principal's letter at the start of the school year. In the principal's letter from August 2021, it was stated that camera surveillance is used at the school as a complement to the school's safety work, that the camera surveillance does not occur in real-time, and that incidents such as fires and unauthorized intrusions into the premises have been able to be investigated with the help of material from the camera surveillance.

Furthermore, teachers are tasked with orally informing students about the camera surveillance at the start of the school year. For guardians, information about the school's camera surveillance is also available on the School Platform's homepage. The information provided on the School Platform's homepage consists of an image of the sign regarding camera surveillance (first layer). Aspuddens School has continued to regularly inform students, guardians, and staff about the camera surveillance and its purpose since August 2021.

The Education Committee has stated that the new routines were introduced following IMY's review of the school's camera surveillance. Previously, there were no clear routines for informing about the camera surveillance occurring in the school. The use of camera surveillance had not been communicated to guardians in principal's letters or via

34 WP260 Guidelines on transparency under Regulation (EU) 2016/679, adopted on April 11, 2018, point 15.

Swedish Authority for Privacy Protection

Diary Number: DI-2021-5774

20(24)

Date: 2023-10-03

information on the School Platform before the start of the school year in August 2021. The teachers have also not been tasked with informing the students about the camera surveillance prior to August 2021.

IMY's Assessment

Children's personal data deserves special protection because children may be less aware of the relevant risks, consequences, and protective measures, as well as their rights regarding the processing of personal data. Camera surveillance involves a privacy-sensitive processing of personal data. Therefore, special measures are required to inform students and guardians about the processing of personal data. In addition to the information provided by the Education Committee to the registered individuals in the form of signs (first layer) and information on the City of Stockholm's website (second layer), IMY notes that Aspuddens School has also been taking several measures since August 2021 to specifically inform students and guardians. Given the school's operations and that the majority of the registered individuals are children, IMY believes that the measures taken since August 2021 constitute an important complement to the other information provided.

IMY notes that the Education Committee has been providing most of the information required under Article 13 of the General Data Protection Regulation since August 2021, either in the first or second layer of information.

Regarding information about the legal basis on which the processing of personal data is based (Article 13.1 c), it is stated in the second layer of information that camera surveillance in schools follows from a legal obligation in the Education Act, which requires that the school environment is characterized by safety. The information does not specify which provision in the Education Act constitutes the legal obligation. IMY notes that incorrect information about the legal basis for the processing can have consequences for the registered individuals. For example, the right to object to the processing under Article 21 of the General Data Protection Regulation only applies to processing based on Article 6.1 e

or f of the General Data Protection Regulation and not when the processing is based on a legal obligation under Article 6.1 c. Thus, the incorrectly stated legal basis for the processing has consequences for the registered individuals' ability to object to the processing.

In summary, IMY concludes that the incorrectly stated legal basis constitutes a deficiency in relation to Article 13.1 c of the General Data Protection Regulation.

IMY further notes that both in the first and in the second layer of information, there is a lack of information about the registered individuals' right to request restriction of processing and information about the right to object to processing. This is information that the data controller is required to provide under Article 13.2 of the General Data Protection Regulation to ensure fair and transparent processing. Against this background, IMY assesses that the absence of information about the registered individuals' right to request restriction of processing and information about the right to object to processing constitutes a deficiency in relation to Article 13.2 b of the General Data Protection Regulation.

In summary, IMY assesses that the deficiencies identified above mean that the Education Committee has violated Article 13 of the General Data Protection Regulation during the period from May 25, 2018, to October 3, 2023, by providing incorrect information about the legal basis on which the processing of personal data is based and that there has been a lack of information about the registered individuals' right to request restriction of processing and to object to processing.³⁵

³⁵ Given that the question of whether Article 13 or 14 should apply in the case of camera surveillance is subject to judicial review (Supreme Administrative Court case no. 870-23), IMY wishes to emphasize that Article 14 imposes equivalent requirements to Article 13 regarding information about the legal basis and the rights of the registered individuals.

Swedish Authority for Privacy Protection

Diary Number: DI-2021-5774

21(24)

Date: 2023-10-03

3.7 Choice of Intervention

3.7.1 Applicable Provisions

The Swedish Authority for Privacy Protection (IMY) has a number of corrective powers in the event of violations of the General Data Protection Regulation (GDPR), including reprimands, orders, and administrative fines. This follows from Article 58.2 a–j of the GDPR.

IMY shall impose administrative fines in addition to or instead of other corrective measures referred to in Article 58.2 of the GDPR, depending on the circumstances of each individual case.

According to Article 83.7 of the GDPR, national law may provide that authorities can be imposed administrative fines. According to Chapter 6, Section 2 of the Data Protection Act, administrative fines can be levied against authorities. In such cases, Articles 83.1, 83.2, and 83.3 of the GDPR shall apply. The administrative fine shall be set at a maximum of 5,000,000 SEK for violations referred to in Article 83.4 of the GDPR and at a maximum of 10,000,000 SEK for violations referred to in Articles 83.5 and 83.6 of the GDPR.

If a data controller or a data processor, with respect to the same or connected processing operations, intentionally or negligently violates several provisions of the GDPR, the total amount of the administrative fine may not exceed the amount established for the most serious violation. This is stated in Article 83.3 of the GDPR.

Each supervisory authority shall ensure that the imposition of administrative fines in each individual case is effective, proportionate, and dissuasive. This is indicated in Article 83.1 of the GDPR.

Article 83.2 of the GDPR specifies the factors to be considered when assessing whether an administrative fine should be imposed, as well as what should influence the amount of the fine.

In the case of a minor violation, the supervisory authority may, according to Recital 148 of the GDPR, issue a reprimand instead of imposing an administrative fine.

3.7.2 Should an Administrative Fine be Imposed?

IMY has, in its review of the Education Committee's video surveillance at Aspuddens School, found that the Education Committee lacked a legal basis for personal data processing through video

surveillance that occurred during operational hours, with the exception of video surveillance aimed at preventing and monitoring arson, which took place outside the door or entrance to toilet facilities in premises belonging to the upper secondary school and involved only monitoring individuals entering and exiting. The Education Committee has thereby violated Articles 6.1 and 5.1 a and c of the GDPR. IMY assesses that the violations pertain to the same processing operation.

The violations have, for the reasons developed below, constituted a significant intrusion into the privacy of students and employees and posed risks to the rights of those affected to exercise their rights. IMY's assessment is therefore that these are not minor violations in the sense referred to in Recital 148 of the GDPR. The violations shall therefore lead to an administrative fine.

Swedish Authority for Privacy Protection

Case Number: DI-2021-5774

22(24)

Date: 2023-10-03

The Education Board has further violated Article 13 of the General Data Protection Regulation by providing incorrect information regarding the legal basis on which the processing of personal data is based, as well as by failing to provide information about the data subjects' rights to request restriction of processing and to object to the processing. The Swedish Authority for Privacy Protection (IMY) notes that this violation largely results from the Education Board's incorrect assessment of the legal basis for the processing. Therefore, there is no reason to impose a fine for this violation. According to IMY, a directive to take corrective action is a sufficient measure in relation to the deficiencies under Article 13 (see further below).

3.7.3 Determination of the Fine

Violations of Articles 5 and 6 are covered by Article 83.5 of the General Data Protection Regulation. The maximum amount for the fine is therefore, according to Chapter 6, Section 2, second paragraph of the Data Protection Act, 10,000,000 SEK.

Regarding the assessment of the severity of the violations, there are initially factors that warrant a more serious view of the violations. The processing of personal data has involved video surveillance of children and employees at the school in their everyday environment where they spend a significant part of their day. The processing of personal data has included children's personal data, which are particularly worthy of protection. The surveillance has taken place in a workplace where the employees are in a dependent relationship with their employer. Both the children and the employees have been required to be present at the location and thus have had no opportunity to avoid the surveillance. Video surveillance occurring in schools gives rise to particular privacy risks. For example, it may enable mapping of staff's work efforts or the habits of staff and students. An employee also does not generally expect to be monitored by their employer at their workplace. The video surveillance has been conducted continuously with image recording without legal basis in extensive parts of the school, including areas where students can sit down to study and outside the school health services. The surveillance has been ongoing for a long time. The violations have thus affected a relatively large number of data subjects, the majority of whom are children, over an extended period and collectively involved a large number of personal data.

At the same time, IMY notes that there are factors that speak in the opposite direction. The Education Board has taken the measures as part of fulfilling the statutory task of public interest, to create safety and a conducive learning environment in the school. The video surveillance has aimed to ensure a safe school environment for the students covered by it. Furthermore, the surveillance has taken place in areas not accessible to the public, which means that a limited circle of individuals has been affected.

IMY assesses that there are no additional aggravating or mitigating circumstances that affect the size of the fine.

In a comprehensive assessment of the aforementioned circumstances and in light of the fact that the administrative fine should be effective, proportionate, and deterrent in the current case, IMY determines the administrative fine for the Education Board to be 800,000 SEK.

3.7.4 Directive

Since the surveillance, as far as can be seen from the investigation, is still ongoing, it is urgent that the Education Board ceases the surveillance that is not permitted. There are therefore grounds to issue a directive under Article 58.2 d of the General Data Protection Regulation requiring the Education Board to cease video surveillance during operational hours at

Swedish Authority for Privacy Protection

Case Number: DI-2021-5774

23(24)

Date: 2023-10-03

Aspuddens School, with the exception of the video surveillance that occurs for the purpose of preventing and monitoring arson outside the door or entrance to toilet facilities in premises belonging to the upper secondary school, which means that only individuals passing in and out are monitored.

According to IMY, it is also urgent that the Education Board takes measures to ensure that the data subjects receive correct and complete information regarding the processing of personal data through video surveillance that occurs at Aspuddens School. There are therefore grounds to issue a directive under Article 58.2 d of the General Data Protection Regulation requiring the Education Board to take measures to ensure that the second layer of information on the City of Stockholm's website contains information about the correct legal basis for the processing as well as information about the rights referred to in Article 13.2 b of the General Data Protection Regulation.

The measures must be taken no later than four weeks after this decision has become legally binding.

This decision has been made by Acting Director General Karin Lönnheden after presentation by the lawyers Sarah Bodlander and Måns Lysén. In the final processing, the Chief Legal Officer David Törngren and Unit Manager Jenny Bård have also participated.

Karin Lönnheden, 2023-10-03 (This is an electronic signature)

Appendix

Information on Payment of Fine

Copy to

Data Protection Officer, Education Board of the City of Stockholm

Swedish Authority for Privacy Protection

Case Number: DI-2021-5774

24(24)

Date: 2023-10-03

4. How to Appeal

If you wish to appeal the decision, you must write to the Swedish Authority for Privacy Protection. In your letter, specify which decision you are appealing and the change you are requesting. The appeal must be received by the Swedish Authority for Privacy Protection no later than three weeks from the date the decision was communicated. If the appeal is submitted in a timely manner, the Swedish Authority for Privacy Protection will forward it to the Administrative Court in Stockholm for consideration.

You may email the appeal to the Swedish Authority for Privacy Protection if it does not contain any sensitive personal data or information that may be subject to confidentiality. The authority's contact details are provided on the first page of the decision.